

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ALEXANDRE CARVALHO, SERGIO CASTILLO,
DANIEL GREENSPAN, AUSTIN GUEST, JOSEPH
SHARKEY, EASTON SMITH, and JENNIFER
WALLER,

Plaintiffs,

-v-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT ("NYPD") OFFICER
JABDED AHMED, SHIELD NO. 19415, NYPD
OFFICER ALEXIS RODRIGUEZ, SHIELD NO.
28722, NYPD OFFICER CHEUNG LI, SHIELD NO.
5474, and NYPD OFFICER MICHAEL GALGANO,
SHIELD NO. 2671,

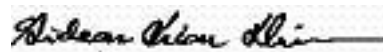
Defendants.

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To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 30, 2016



GIDEON ORION OLIVER, ESQ.
Attorney at Law
277 Broadway, Suite 1501
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(646) 263-3495

Defendants' addresses:

City of New York
c/o Corporation Counsel
100 Church Street
New York, New York 10007

NYPD Officer Michael Galgano
Patrol Borough Manhattan South
230 E 21st Street
New York, NY 10010

NYPD Officer Cheung Li
Sixth Precinct
233 West 10th Street
New York, NY 10014

NYPD Officer Jabded Ahmed
SRG-1
524 West 42 Street
New York, NY 10036

NYPD Officer Alexis Rodriguez
SRG- 1
524 West 42 Street
New York, NY 10036

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Defendants.

Index No.

Date Filed:
September 30, 2016

COMPLAINT

Plaintiffs, by their counsel, GIDEON ORION OLIVER, as and for their Complaint
against Defendants, hereby allege as follows:

1. On June 17, 2013, Plaintiffs brought a prior action based upon the same
transaction or occurrence or series of transactions or occurrences against Defendants herein in
the United States District Court for the Southern District of New York under Docket Number 13-
cv-4174 (PKC)(MHD). On March 26, 2014, Plaintiffs filed a First Amended Complaint in that
matter.

2. In a March 31, 2016 Memorandum and Order, United States District court Judge
Hon. P. Kevin Castel dismissed numerous federal claims asserted in that action with prejudice,
and dismissed various Plaintiffs’ causes of action based on the New York state constitution and
laws without prejudice. In the present action, Plaintiffs only assert causes of action that were
dismissed without prejudice by Judge Castel.

3. The present action is timely commenced pursuant to New York State Civil Practice Law and Rules Section 205(a).

4. Plaintiffs demand a trial by jury on each and every claim or cause of action pleaded herein.

PARTIES

5. At all times relevant herein, Plaintiffs were each residents of the City and State of New York.

6. Defendant THE CITY OF NEW YORK (“NYC” or “the City”) is a municipal entity created and authorized under the laws of the State of New York, with general offices located at City Hall, New York, New York 10007.

7. Defendant City is authorized by law to maintain the New York City Police Department (“NYPD”), which acts as its agent in the area of law enforcement, and defendant City is ultimately responsible for the NYPD and assumes the risks incidental to the maintenance of it and its employees.

8. At all times relevant herein, Defendants NYPD OFFICER JABDED AHMED, SHIELD NO. 19415, NYPD OFFICER ALEXIS RODRIGUEZ, SHIELD NO. 28722, NYPD OFFICER CHEUNG LI, SHIELD NO. 5474, and NYPD OFFICER MICHAEL GALGANO, SHIELD NO. 2671, were acting as duly appointed and acting officers, servants, employees, and agents of Defendant City; for, on behalf of, and with the power and authority vested in them by Defendant City; and they were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

9. At all times relevant herein, Defendants were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

10. Each and all of the acts of the non-municipal Defendants alleged herein were done by said Defendants while acting within the course and scope of, and in the furtherance of, their employment by, and duties and functions as agents of, the Defendant City.

11. Each individual Defendant is sued in their official capacity.

12. At all times relevant herein, Defendant acted or failed to act with malicious, intentional, and knowing intent, and/or with a deliberate indifference to, or a reckless regard for, the natural and probable consequences of their acts and/or omissions.

STATEMENT OF FACTS

13. At all times relevant herein in 2011 and 2012, Plaintiffs were each participants in the Occupy Wall Street movement (“Occupy” or “OWS”).

14. On September 17, 2011, OWS began a 24-hour occupation of Zuccotti Park, a privately owned public space in lower Manhattan also known as Liberty Plaza.

15. Zuccotti Park is a Privately Owned Public Space that was created via a Special Permit issued by the New York City Planning Commission (“CPC”) in 1968 pursuant to a provision of the New York City Zoning Resolution (“ZR” or “Zoning Resolution”) in effect at that time.

16. Under the Special Permit, Liberty Plaza is defined as a “permanent open park” for the “public benefit.”

17. Under the Special Permit, Zuccotti Park must be open to the public at all times.

18. Under the Special Permit, Zuccotti Park must be accessible to the public at all times.
19. Under the ZR, Zuccotti Park must be open to the public at all times. *See, e.g.*, ZR 37-623, 37-727.
20. Under the ZR, Zuccotti Park must be accessible to the public at all times.
21. Under the ZR, prohibitions or “Rules of Conduct” in Zuccotti Park must be clearly posted in writing. *See* ZR 37-75, *et seq.*
22. By long-standing City practice, any such prohibitions must be reasonable.
23. After OWS began occupying Zuccotti Park on September 11, 2011, as a direct result of and reaction to OWS, the private owner of Zuccotti Park, Brookfield Properties, caused such a “Rules of Conduct” sign to be posted within Zuccotti Park.
24. Between September 17, 2011 and November 15, 2011, the Occupy Wall Street movement physically occupied Zuccutti Park.
25. On the early hours of November 15, 2011, the NYPD raided Zuccotti Park and forcefully cleared it, arresting scores of occupiers.
26. Beginning on November 15, 2011, and for significant periods of time thereafter leading up to and including on March 17, 2012, the NYPD erected metal barricades around Zuccotti Park, and members of the public were subject to searches of their personal belongings by security personnel as a condition of entering Zuccotti Park.
27. Upon information and belief, at no time after the November 15, 2011 raid and March 17, 2012 was Zuccotti Park closed for cleaning.
28. The NYPD also enforced arbitrary and shifting criteria in determining who could enter the park, when, and what behavior they could engage in within Zuccotti Park.

29. The shifting rules regarding entry and conduct enforced by Defendants to limit expressive association and other protected activity within Zuccotti Park failed to provide Plaintiffs with adequate notice about which conduct was prohibited and when.

30. Those actions, as well as the actions taken against Plaintiffs complained of herein, violated the terms of the Special Permit and the ZR.

31. March 17, 2012 was St. Patrick's Day and the six-month anniversary of Occupy Wall Street.

32. On March 17, 2012, Defendants Ahmed, Rodriguez, Li, and Galgano were each NYPD officers assigned to the NYPD's Manhattan South Task Force ("MSTF").

33. On March 17, 2012, Defendant Viviano supervised Defendants Ahmed, Rodriguez, Li, and Galgano.

34. On March 17, 2012, each Plaintiff was lawfully present in Zuccotti Park.

35. On March 17, 2012, each Plaintiff was participating in celebrating the six-month anniversary of OWS by assembling, speaking, and otherwise celebrating as part of a group within Zuccotti Park, the physical heart of the movement.

36. According to then-Chief of Department Joseph Esposito, he determined to close Zuccotti Park on the evening of March 17, 2012 based on what he perceived to be violations of the rules of conduct in Zuccotti Park, "to temporarily clear the Park of people to allow Brookfield to remedy the ongoing violations and clean the Park."

37. NYPD officers then gave dispersal orders to protesters informing them to leave the Park based on violations of the Zuccotti Park rules.

38. Several – though not all - Plaintiffs heard dispersal orders.

39. Plaintiffs each remained in Zuccotti Park.

40. Plaintiffs were each subsequently arrested by unidentified or unidentifiable NYPD officers, as described more fully below.

41. The purported justifications for the arrests were violation-level trespass or disorderly conduct offenses.

42. Upon information and belief, at all times relevant herein, DANY policy and practice with respect to prosecuting large-scale arrests was to decline to prosecute cases in which the NYPD could not locate an officer who had observed the arrestee engage in pre-arrest conduct.

43. Upon information and belief, in recognition of the New York State Court of Appeals' decision in *People ex rel. Maxian on Behalf of Roundtree v. Brown*, 164 AD2d 56, 57 (1st Dept. 1990), aff'd, 77 NY2d 442 (1991) recognizing that the New York State Constitution requires that an arrestee must be arraigned within 24 hours of their arrest, or their detention is presumptively unreasonable, NYPD policies and procedures regarding arrest processing, including large-scale arrest processing, are designed to ensure prompt arraignments for arrestees within 24 hours.

44. Under New York state law, an officer only has probable cause to arrest a person for such a violation they personally observe.

45. NYPD officers transported Plaintiffs and other arrestees to an MTA bus near Zuccotti Park.

46. NYPD officers loaded Plaintiffs and other arrestees onto an MTA bus near Zuccotti Park.

47. In large-scale arrest situations, the NYPD has a policy and practice to take a photograph of the officer who physically arrests a person with that person before placing the

person into an NYPD vehicle for transportation to the precinct or other location at which arrests will be processed.

48. Before the MTA bus left Zuccotti Park on March 17, 2012, a NYPD supervisor, Lieutenant Frank Viviano, knew that Defendants Ahmed, Rodriguez, Li, and Galgano had not seen any Plaintiff until after that Plaintiff had already been arrested and loaded onto the MTA bus.

49. Lieutenant Viviano told Defendant Galgano in sum and substance that there had been a “mix-up” as a result of which the arrestees on the MTA bus had been separated from the officers who physically placed them under arrests, such that those officers could not be located.

50. According to then-Chief of Department Esposito’s testimony during his deposition in the federal case, NYPD policy and practice when the observing officer cannot be located is to release the arrestee, rather than to continue processing the arrest.

51. Also according to deposition testimony from Esposito and other NYPD supervisors in the federal case, it is a violation of NYPD procedure and/or a crime for an officer to state that they personally observed something in NYPD arrest processing paperwork, when the officer did not personally observe that thing.

52. Rather than releasing Plaintiffs, Lieutenant Viviano assigned Defendants Ahmed, Rodriguez, Li, and Galgano each to process five arrests of people who were on the MTA bus.

53. At the precinct to which Plaintiffs were each brought on the MTA bus, Defendants Ahmed, Rodriguez, Li, and Galgano met and consulted with other officers in connection with filling out arrest processing paperwork relating to Plaintiffs’ arrests, among others.

54. Defendant Ahmed was assigned to process the arrests of Plaintiffs Carvalho, Guest, and three other people.

55. Defendant Rodriguez was assigned to process the arrests of Plaintiff Smith and Castillo and three other people.

56. Defendant Li was assigned to process the arrests of Plaintiffs Waller and Greenspan and two other people.

57. Defendant Galgano was assigned to process the arrests of Plaintiff Sharkey and four other people.

58. Defendant Ahmed filled out five sets of arrest processing paperwork.

59. Defendant Rodriguez filled out five sets of arrest processing paperwork.

60. Defendant Li filled out five sets of arrest processing paperwork.

61. Defendant Galgano filled out five sets of arrest processing paperwork.

62. At no time during that process did anyone inform Defendants Ahmed, Rodriguez, Li, or Galgano of what conduct any Plaintiff engaged in prior to that Plaintiff's arrest.

63. None of the Defendants, nor any other NYPD officer, attempted to locate the officers who had arrested Plaintiffs.

64. None of the Defendants, nor any other NYPD officer, attempted to locate the officers who had observed Plaintiffs in Zuccotti Park prior to their arrests engaging in any unlawful conduct.

65. However, Defendants Ahmed, Rodriguez, Li, and Galgano each filled out NYPD arrest processing paperwork related to Plaintiffs' arrests, and the other arrests to which they were assigned, in which they falsely stated that they had personally observed Plaintiffs and others within Zuccotti Park, engaging in unlawful conduct, when in fact the first time they saw

Plaintiffs at all, Plaintiffs had already been arrested and placed in handcuffs and were already in police custody.

66. Although they knew that they had not observed Plaintiffs, and that they could not identify any fellow officer who had, rather than releasing them, Defendants Ahmed, Rodriguez, Li, and Galgano spent around the next 24 hours creating arrest processing paperwork related to Plaintiffs' arrests and moving the process of prosecuting Plaintiffs forward.

67. At the time Defendants Ahmed, Rodriguez, Li, and Galgano created the arrest processing paperwork falsely stating that they had observed Plaintiffs within Zuccotti Park, they knew that they had not observed Plaintiffs within Zuccotti Park.

68. Upon information and belief, as part of that process, many hours after Plaintiffs' arrests, Defendants Ahmed, Rodriguez, Li, and Galgano forwarded their arrest processing paperwork to prosecutors from the Office of the District Attorney of New York County ("DANY").

69. After mass arrest processing at the precinct, each Plaintiff was brought to the New York City Criminal Court at 100 Centre Street, where they spent hours being processed for arraignment.

70. At the same time, Defendants Ahmed, Rodriguez, Li, and Galgano met with prosecutors from DANY at 100 Centre Street.

71. Upon information and belief, during their meetings with DANY, Defendants Ahmed, Rodriguez, Li, and Galgano admitted that they had not seen Plaintiffs engage in any criminal conduct, nor could they identify any fellow officer who had.

72. As a result, DANY declined to prosecute Plaintiff's cases because no officer could be located who could "personally attest to" any Plaintiff's conduct prior to their arrests.

73. DANY declined to prosecute 18 of the 20 arrests processed by Defendants Ahmed, Rodriguez, Li, and Galgano arising from this incident.

74. DANY also declined to prosecute cases arising from numerous other arrests arising from this incident.

75. After between over 24 hours and as many as 30 hours in custody, each Plaintiff was let out the back door of the courthouse building at 100 Centre Street without any charges.

76. Upon information and belief, the NYPD has taken no action to address the fact that numerous NYPD officers created arrest processing paperwork containing false statements that they had personally observed Plaintiffs engage in unlawful conduct in order to prosecute Plaintiffs and forwarded that paperwork to prosecutors, rather than complying with NYPD procedures and practices requiring that arrestees whose arresting officers cannot be located be released.

PLAINTIFF ALEXANDRE CARVALHO – DEFENDANTS CITY AND AHMED

77. Among other uses of force, unidentified NYPD officers kicked Mr. CARVALHO in the ribs in the course of arresting him.

78. After Mr. CARVALHO was kicked, other NYPD officers grabbed and threw him.

79. Mr. CARVALHO was placed in tight handcuffs.

80. After MR. CARVALHO complained that his cuffs were hurting his hands, which were turning purple, and that his fingers were numb from overly tight handcuffs, Defendant Li loosened them.

81. Mr. CARVALHO was taken to Bellevue Hospital, where x-rays were taken of his ribs.

82. Approximately 28 hours after his arrest, Mr. CARVALHO was released out of the back door of 100 Centre Street without any paperwork or charges.

83. Mr. CARVALHO's hands remained red for around 24 hours after the handcuffs were eventually removed.

84. Mr. CARVALHO's wrists had some marking on them for around 72 hours after the handcuffs were removed.

85. The pain in Mr. CARVALHO's ribs subsided within around 72 hours after his arrest.

86. Approximately 28 hours after his arrest, at or around 3:00AM on March 19, 2012, Mr. CARVALHO was released out of the back door of 100 Centre Street without any paperwork or charges.

PLAINTIFF SERGIO CASTILLO – DEFENDANTS CITY AND RODRIGUEZ

87. The first contact Mr. CASTILLO had a police officer was when an unidentified NYPD officer hit him with a baton on his left shoulder.

88. An officer grabbed Mr. CASTILLO by the shirt/collar area and forced him to his feet. Mr. CASTILLO put his hands up and said, "I'm not resisting arrest." The police officer then threw Mr. CASTILLO onto the ground, ramming his knee into Mr. CASTILLO's lower back, and began to handcuff him.

89. Another officer stepped on Mr. CASTILLO's face and pushed his head onto the concrete with his foot.

90. As Mr. CASTILLO was thrown to the ground, his right knee was cut and bleeding.

91. Mr. CASTILLO was screaming, “I’m not resisting arrest. Jesus Christ, I’m not resisting arrest.”

92. Mr. CASTILLO was handcuffed and taken to a penned off area with other arrestees.

93. The handcuffs were extremely tight. They were removed and replaced on the MTA bus after Mr. CASTILLO complained.

94. As a result of the tight handcuffs, Mr. CASTILLO experienced numbness in his hands for over a month, had marks on his wrists for approximately three months, and was concerned about nerve damage.

95. Approximately 28 hours after his arrest, at or around 3:00AM on March 19, 2012, Mr. CASTILLO was released out of the back door of 100 Centre Street without any paperwork or charges.

PLAINTIFF DANIEL GREENSPAN – DEFENDANTS CITY AND LI

96. During the course of arresting him, an NYPD officer struck Mr. Greenspan at least twice on the left shoulder and once on the left arm with a closed fist, causing Mr. Greenspan to feel pain and discomfort.

97. Mr. Greenspan tried to stand but could not as NYPD officers dragged him to an area around 20 feet away.

98. At that area, in the process of placing Mr. Greenspan in handcuffs, an officer put his knees in Plaintiff Greenspan’s back and another officer put his knees or feet in the back of Plaintiff Greenspan’s knee pit with pressure or force, and an officer also had their foot on Plaintiff Greenspan’s skull. The officers told him to get up and he told them that he could not because they were on top of him. They placed cuffs on him while he was on the ground.

99. Plaintiff Greenspan had red skin and scratches as well as ripped skin on his knee.

100. Plaintiff Greenspan experienced swelling and pain from the handcuffs.

101. Approximately 28 hours after his arrest, at or around 3:00AM on March 19, 2012, Mr. GREENSPAN was released out of the back door of 100 Centre Street without any paperwork or charges.

PLAINTIFF AUSTIN GUEST – DEFENDANTS CITY AND AHMED

102. Approximately 28 hours after his arrest, at around 3:00AM on March 19, 2012, Mr. GUEST was released out of the back door of 100 Centre Street without any paperwork or charges.

PLAINTIFF JOSEPH SHARKEY – DEFENDANTS CITY AND GALGANO

103. Prior to arresting him, an unidentified NYPD officer hit Mr. SHARKEY on the head and possibly the shoulder with a baton.

104. Several other officers grabbed Mr. SHARKEY and pulled him five to ten feet away before cuffing him.

105. As he was put on the MTA bus, an officer tightened Mr. SHARKEY's handcuffs.

106. Approximately 28 hours after his arrest, at around 3:00AM on March 19, 2012, Mr. SHARKEY was released out of the back door of 100 Centre Street without any paperwork or charges.

PLAINTIFF EASTON SMITH – DEFENDANTS CITY AND RODRIGUEZ

107. In the course of arresting Mr. Smith, multiple officers dragged Mr. SMITH about ten feet on the ground, hurting his left leg, placed him on the sidewalk, and handcuffed him.

108. One of the officers kneeled on Mr. SMITH's back and put his weight on Mr. SMITH's back, causing him to experience pain and fear.

109. Another officer pushed Mr. SMITH's head into the pavement, causing him to experience pain and fear.

110. Mr. SMITH's wrists were uncomfortable due to the tight cuffing.

111. Approximately 28 hours after his arrest, at or around 3:00AM on March 19, 2012, Mr. SMITH was released out of the back door of 100 Centre Street without any paperwork or charges.

PLAINTIFF JENNIFER WALLER – DEFENDANTS CITY AND LI

112. An NYPD officer approached Ms. WALLER from behind and tried to lift her off the ground into a standing position by placing one of her hands on Ms. WALLER's hair and the other on the back of her scarf, pulling on her hair and choking her.

113. Ms. WALLER said, "Please don't hurt me, I will comply with you."

114. Another officer came up and grabbed Ms. WALLER.

115. Officers took Ms. WALLER out of the park and handcuffed her.

116. Ms. WALLER witnessed an arrestee who appeared to be having seizures and whose head was hitting against the ground. Ms. WALLER asked that she be provided with medical attention. Ms. WALLER received no response.

117. Over a half hour later, Ms. WALLER was loaded onto a MTA bus. Although she walked onto the bus in a compliant manner, one of the individual defendants shoved her as she was walking onto the bus so that she hit her chest.

118. On the bus, Ms. WALLER asked to use the restroom, and was not allowed to do so.

119. The MTA bus transported Ms. WALLER and the other arrestees to the NYPD's Midtown South Precinct.

120. At the precinct, when Ms. WALLER eventually began to sing in the cell, an officer ran into the room with a taser and threatened to taser her or bring her to Bellevue Hospital if she did not stop singing.

121. Ms. WALLER was eventually transported from the precinct to the courthouse building at 100 Centre Street.

122. Approximately 28 hours after her arrest, at around 3:00AM on March 19, 2012, Ms. WALLER was released out of the back door of 100 Centre Street without any paperwork or charges.

FIRST CAUSE OF ACTION
**FALSE ARREST/
FALSE IMPRISONMENT/
EXCESSIVE DETENTION**

123. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

124. By the actions described above, Defendants caused to be falsely arrested or falsely arrested Plaintiffs, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so.

125. Additionally, although they knew that they could not locate any officer who had any personal knowledge of or who could testify as to Plaintiffs' conduct, rather than releasing Plaintiffs, Defendants detained Plaintiffs for over 24 hours while they created arrest processing paperwork including false reports as to their personal observations of Plaintiffs' conduct and forwarded that paperwork to prosecutors, thereby increasing the lengths of their detentions.

126. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

127. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

SECOND CAUSE OF ACTION
ASSAULT AND BATTERY

128. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

129. By the actions described above, Defendants did inflict assault and battery upon Plaintiffs. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

130. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

THIRD CAUSE OF ACTION
***RESPONDEAT SUPERIOR* LIABILITY OF THE CITY OF NEW YORK**

131. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

132. The conduct of the individual Defendants and other NYPD officers alleged herein occurred while they were on duty and in uniform, and/or in and during the course and scope of

their duties and functions as NYPD officers, and/or while they were acting as agents and employees of Defendant City, clothed with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to Plaintiffs pursuant to the state common law doctrine of *respondeat superior*.

133. As a result of the foregoing, plaintiffs were deprived of their liberty, suffered bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

FOURTH CAUSE OF ACTION
VIOLATIONS OF THE CONSTITUTION OF THE STATE OF NEW YORK

134. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

135. Defendants' conduct alleged herein breached the protections guaranteed to plaintiff by the New York State Constitution, Article I, §§ 6, 8, 9, 11, and 12, including the following rights:

- a. Freedom to speak, express themselves, associate, and assemble;
- b. Freedom from deprivation of liberty without due process of law;
- b. Freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification, and of which plaintiff was aware and did not consent; and
- c. The enjoyment of equal protection, privileges and immunities under the laws.

136. A damages remedy here is necessary to effectuate the purposes of §§ 6, 8, 9, 11 and 12 of the New York State Constitution, and appropriate to ensure full realization of Plaintiffs' rights under those sections.

137. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

FIFTH CAUSE OF ACTION
INTENTIONAL AND NEGLIGENT INFLICTION
OF EMOTIONAL DISTRESS

138. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

139. By the actions described above, Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Plaintiffs. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

140. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and were otherwise damaged and injured.

SIXTH CAUSE OF ACTION
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION, AND TRAINING

141. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

142. Defendant City negligently hired, screened, retained, supervised, and trained defendants. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

143. Defendant City did not exercise reasonable care and diligence in the selection, hiring, engagement, employment, retention, training, supervision and discipline of Defendants or other officers who were involved in injuring Plaintiffs.

144. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs pray for the following relief:

- A. Compensatory damages against the defendants jointly and severally; and
- B. Punitive damages against the individual defendants; and
- C. Attorney's fees and costs pursuant to 42 USC §1988; and
- D. Such other and further relief as the Court deems just and proper.

DATED: New York, New York
September 30, 2016

Respectfully submitted,



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